

U.S. Department of Navy Naval Research Laboratory - Small Purchase Branch USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD – (exceeding \$10,000 - \$350,000)	Purchase Request No. Estimated Cost <i>(including options, if any)</i>
FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization). As required by FAR 13.106-3(b)(3)(i), this justification explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.	
DESCRIPTION OF ITEM OR SERVICE: <i>(Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.)</i> The required Lynx MOSA.ic (Modular Open Systems Approach) subscription includes LynxSecure (hypervisor, LynxOS), and Lynxelement (Unikernel) from Lynx Software Technologies. This suite of products will provide NRL with the ability to keep computer tasks separate and secure. It uses the computer's physical hardware to build digital walls, allowing "virtual" systems to run at the same time without slowing down or compromising security. NRL uses this capability to ensure critical flight data stays in its own private, protected area even while mission applications are running on the same system. The subscription includes Premium Support for remote live support via phone, email and web; Service Pack Updates; Release Updates; Release Upgrades, and Support Portal access. Brand Name/Required Manufacturer: Lynx MOSA.ic for Avionics - Subscription and Support Required delivery date: NLT 6/29/2026	

THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. X ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required. *(Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the Government's need.)*

2. X **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM. *(Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM).*

The item is only available from the OEM, Lynx. Lynx confirmed to NRL on 27 March 2026 that it does not utilize third-party resellers for the sale of its products and does not have an established relationship with any third-party resellers within the U.S.

OR

Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. NOTE: If there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RESPONSIBLE SOURCE, should be left blank).

3. **OTHER REASONS.** *Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.*

B. X BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer. *(Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs.)*

Lynx MOSA.ic is the only product that can meet the Government's requirement for a secure hypervisor managed software architecture with support for multicore processor-based systems for the reasons written in the next paragraph. To support the assertions below; LynxSecure hypervisor is developed according to DO-178C DAL A standards and compliant with ARINC 653 architecture requirements, which further enables NRL's ability to have systems certified by Navy Security Assessors. This is an absolute requirement from NRL's fleet program office stakeholders.

An extensive code base has been developed by NRL utilizing the Lynx MOSA.ic platform's various capabilities to provide mission-critical processing and filtering services. Moving to another vendor's platform would require a total refactor and/or rewrite of a non-trivial number of lines of code, as well as, negate multiple years of regression and integration testing to prevent and eradicate bugs and crashes. This would also compromise NRL's ability to certify the security of its systems to DoD standards necessary for deployment to the fleet. Additionally, it would result in the incurrence of [REDACTED] unnecessary labor costs and unacceptable delays that would have significant impacts on the program office's deployment schedules of fleet required products.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

- 1. Date on which the requirement was first identified:
- 2. Required delivery date/period of performance:
- 3. Explanation of why delivery/commencement of services by the date mentioned above is required: *(Explain the impact to the mission if the date above is not met, any special circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.).*
- 4. If appropriate, include any additional pertinent information.

ACQUISITION INITIATOR - Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.			
SIGNATURE (<i>Requestor</i>)	CODE	PHONE	DATE
[REDACTED]			
CONTRACTING OFFICER (<i>Procurement Office use Only</i>)			
On the basis of the justification, I hereby approve the use of an other than full and open competition proposed contractual action in accordance with FAR 13.106-1(b)(1) Soliciting Competition from a Single Source.			
SIGNATURE	CODE	PHONE	DATE
[REDACTED]			